



Stakeholder communication and engagement policy

Live Animal Export Branch

Introduction

The Department of Agriculture, Fisheries and Forestry regulates the export of prescribed livestock, live animals and animal reproductive material in accordance with the *Export Control Act 2020* and the *Export Control (Animals) Rules 2021*.

Stakeholder communication and engagement activities are core functions of an effective regulator and support day-to-day interactions with regulated entities through to the development of fit-for-purpose operational policy and standards.

1 Purpose

This policy describes the circumstances, practices and platforms the department may use to engage with live animal export stakeholders.

2 Stakeholders

External stakeholders include but are not limited to:

- accredited veterinarians (AAV)
- agents for livestock, other live animals and animal reproductive material
- animal health bodies
- animal welfare groups
- community groups
- live animal exporters, including animal reproductive material exporters
- national, state or territory farming organisations
- national, state or territory peak export industry bodies
- national, state or territory producer bodies
- other Australian, state or territory governments, including the Office of Impact Analysis
- producers and farmers
- registered establishment occupiers
- other interested parties.

3 Communication and engagement channels

The department uses a variety of targeted channels and consultation mechanisms to communicate and engage with its stakeholders. This ensures there are reasonable opportunities to be heard, and to support effective and diverse representation. These practices align with the department's [Regulatory practice statement](#).

The department will use the most appropriate communication channels for the given intent, audience, messaging and desired outcomes. These can be formal, informal, interactive, educational, face to face, directional and/or advisory, and may include:

- brochures, information packs, reports
- departmental webpages, media releases, department spokesperson/address or general updates
- direct correspondence, such as via email or telephone
- education and training events
- export advisory notices (EAN) and market access notices (MAN)
- Have Your Say and other survey platforms
- round tables, forums, seminars, focus groups, working groups, consultations
- social media, including X (formerly Twitter), Facebook, LinkedIn
- webinars, teleconferences.

Stakeholders are encouraged to [contact us](#) to discuss preferred engagement methods, such as on an individual or group basis, or if there are difficulties or concerns around providing a formal submission.

4 Engagement circumstances and feedback mechanisms

[Appendix A](#) outlines circumstances where the department engages with specific stakeholder groups.

To support effective engagement, the department will:

- consider the timing of consultation processes, and provide additional time if they occur over busy or holiday periods
- notify stakeholders of the dates and known details of upcoming engagement at the earliest practicable opportunity to support planning and participation
- periodically evaluate its communication and engagement activities to determine whether they are effective and whether messages are being understood.

When undertaking reviews or a formal consultation process, the department will prepare a response to submissions. This could be a separate consultation summary response or be included within a final report. The response to submissions will summarise the consultation undertaken, what was heard, the themes that came through and how the feedback received was used to improve outcomes.

In all circumstances, the department protects information that is of a sensitive or confidential nature so as not to compromise any person, place or organisation as it deems necessary and in line with all

relevant legislation. Information obtained under, or in accordance with, the *Export Control Act 2020* is protected information and may only be used or disclosed in accordance with the Act.

5 Providing public comment on livestock exports

Where issues occur during the export of livestock, the department is limited in what it can publicly comment on. The department's legal and decision-making obligations around information disclosure vary depending on the nature of the issue.

When considering whether to make a statement about a consignment, the department balances the potential public benefit of doing so against its responsibilities and restrictions under the legislation. Further considerations include:

- legislative restrictions under the *Export Control Act 2020*, *Export Control (Animals) Rules 2021* and the *Privacy Act 1988*
- personal, sensitive (including commercially sensitive) or confidential information
- whether the incident (or a related incident) is under active investigation
- the application of procedural fairness principles
- resourcing priorities and responsibilities.

As a result of legal constraints, communications from the department may sometimes be ambiguous. It may also take some time before public comments on regulatory activities, including outcomes of decisions, can be made, particularly in complex situations.

Where possible, the department aims to keep stakeholders informed and to support transparency, accountability and public confidence in the department.

6 Related material

- [Export advisory notices](#)
- [Export Control Act 2020](#)
- [Export Control \(Animals\) Rules 2021](#)
- [Exporting live animals](#)
- [Have Your Say website \(DAFF\)](#)
- [Market access notices](#)
- [Public comment on livestock exports](#)
- [Regulating live animal exports](#)
- [Regulatory practice statement](#)

Appendix A: Stakeholder engagement circumstances and platforms

Circumstance	Primary stakeholder audience includes	Reason	Platforms that may be utilised
Routine interactions with our regulated entities, on day-to-day operations. For example: – AAV application assessments – licence or approved arrangement assessments – notice of intention to export (NOI) assessments.	• AAVs • live animal exporters • other government departments • registered establishment occupiers	The department will communicate with individual stakeholders directly and in-confidence where a particular activity directly concerns their operations (such as licence or approved arrangement assessments). There are circumstances where the department can only communicate with certain persons in a livestock export business. They must be nominated under the relevant export licence as a person in management or control. This is a requirement under the Act. Read more about management or control and directing export operations. The department will not consult with other stakeholders on these day-to-day operations. The nature of the engagement is regulatory and appropriate to be between the regulator and the regulated entity.	• telephone and/or email notifications, instructions and advice • written correspondence (such as email or formal notices)
Non-routine interactions with regulated entities and other stakeholders. This may include interactions relating to: – claims of Export Supply Chain Assurance System (ESCAS) non-compliances – compliance activities – significant regulatory decisions or livestock export incidents.	• affected parties where appropriate	The department has different legal and decision-making responsibilities in respect of individual regulatory decisions, which are dependent on the issue. In relation to non-routine interactions, the department will consult directly and in confidence with affected regulated entities. Third parties and other stakeholders may provide a submission to the department for its consideration on any regulatory matter. However, the department will use its discretion when deciding whether to respond to, or action, any submission it receives as it deems necessary. The department will not seek input, consult or engage in active dialogue with third party stakeholders, in circumstances where a departmental employee has the statutory authority under relevant export legislation to make a decision. The department may use its discretion and legislative authority to publicly communicate major regulatory decisions.	• department website, including for – stakeholder consultation, public notification or general information – media releases, department spokesperson/address, incident update or other public statement • written correspondence (such as email or formal notices)

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Policy, guidelines and procedures development that affect export operations. For example, policies to support compliance with the Australian Standards for the Export of Livestock (ASEL), such as how to appropriately calculate voyage length and feed and water provisions.	• AAVs • live animal exporters • peak industry bodies • registered establishment occupiers	Where policies affect export operations, stakeholders that are directly or indirectly impacted will be consulted to ensure any new or updated requirements are practical and fit for purpose, and appropriate guidance material is available. For formal consultation, the department will prepare a response summarising the consultation undertaken, what was heard, and how the feedback received was used to improve outcomes. The department may not respond to individual submissions, at its discretion.	• department website and social media platforms • feedback platforms • stakeholder working group meetings • training sessions • via key representative industry bodies • written correspondence (such as email or formal notices)
Standards, reviews, reforms and legislation. For example: – consultation on proposed amendments to export legislation, such as changes to the <i>Export Control Act 2020</i> and Export Control (Animals) Rules 2021 – live export standards and reviews, such as reviews and implementation of the ASEL.	• all relevant stakeholders	The department will engage widely to ensure subject matter experts are engaged, stakeholders are given a platform to be heard, and relevant considerations are reviewed by the department. For standards, reviews and reform work, the department will engage with all relevant stakeholders to ensure it obtains a holistic and evidence-based understanding on a wide range of matters that may affect, and be affected by, any new or updated requirements. For formal consultation, the department will prepare a response summarising the consultation undertaken, what was heard, and how the feedback received was used to improve outcomes. The department may not respond to individual submissions, at its discretion.	• department website and social media platforms • events, seminars and other forums • Have Your Say, other survey and market research platforms • stakeholder working group meetings • training sessions • written correspondence (such as email or formal notices) • via key representative and industry bodies

Version control

Version	Date of issue	Author	Reason for change
1.0	April 2022	Live Animal Export Branch	First publication
2.0	April 2023	Live Animal Export Branch	- Added content relating to persons in management or control - Updated department branding and document formatting
3.0	March 2026	Live Animal Export Branch	- Updated to include information about public comment for livestock exports - Updated to address relevant Inspector General recommendations

Acknowledgement of Country

We acknowledge the continuous connection of First Nations Traditional Owners and Custodians to the lands, seas and waters of Australia. We recognise their care for and cultivation of Country. We pay respect to Elders past and present, and recognise their knowledge and contribution to the productivity, innovation and sustainability of Australia's agriculture, fisheries and forestry industries.

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